

24STCV7451 24STCV7451

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-08-18

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Case Number: 24STCV7451 Hearing Date: August 18, 2026 Dept: 300

CASE NUMBER: 24STCV27451

CASE NAME: Mynor Geovany Velasquez Rodriguez vs.

General Motors LLC

TYPE OF MOTION: Motion for Leave to File First Amended Complaint

FILING PARTY: Plaintiff Mynor Geovany

Velasquez Rodriguez

RESPONDING

PARTY: Unopposed

HEARING DATE: August 18, 2026

Instant Motion

Plaintiff moves the Court for an order granting leave to file a first amended complaint (FAC). The motion is unopposed.

Discussion

Plaintiff moves the Court for an order granting leave to file a first amended complaint (FAC).

“[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.”² (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)³ “Where no prejudice is shown

to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 56-66; cf. Arthur L. Sachs, Inc. v. City of Oceanside (1984) 151 Cal.App.3d 315, 324 (denial of leave to amend on the eve of trial was error absent a showing a prejudice).)

Plaintiff seeks to amend the complaint on the grounds that the complaint inadvertently identifies the owner of the entity that purchased the subject vehicle as the Plaintiff in this action. As such, Plaintiff seeks to correct this misidentification by naming the purchasing entity itself as the Plaintiff.

Here, the complaint identifies the individual CEO and Agent, Mynor Geovany Velasquez Rodriguez, of the purchasing entity, Power Fusion, Incorporated (PFI), rather than PFI itself. Plaintiff’s Counsel Hayk Stambultsyan (Counsel) states that the naming issue was only recently brought to Plaintiff’s attention, that Defendant requested the instant motion, and that the matter has been settled and the parties will execute the relevant settlement documents once the naming issue is corrected. (Stambultsyan Decl., ¶¶ 3-5.)

Accordingly, the motion is GRANTED as the Court finds that good cause exists to allow Plaintiff to file the proposed amended complaint and the instant motion complies with the requirements of California Rules of Court, rule 3.1324.

Conclusion

Based on the foregoing, the motion is GRANTED. Plaintiff is ORDERED to file and serve the proposed First Amended Complaint within ten (10) days of this order.